



## CHAPTER xliv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Rothsay Tramways and Omnibuses. A.D. 1930.  
—  
[20th March 1930]

**W**HEREAS the Provisional Order set forth in the schedule hereunto annexed has after inquiry held before Commissioners been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict.  
c. 47.  
16 & 17  
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation  
of Order in  
schedule;

2. This Act may be cited as the Rothsay Tramways and Omnibuses Order Confirmation Act 1930. Short title.



A.D. 1930.

SCHEDULE.

ROTHESAY TRAMWAYS AND OMNIBUSES.

*Provisional Order to make provision as to the temporary discontinuance and permanent abandonment of the tramways of the Rothesay Tramways Company Limited to authorise the Company to run omnibuses in substitution for tramcars and for other purposes.*

WHEREAS under powers conferred by the Rothesay Tramways Order 1880 the Rothesay Tramways Order 1900 and the Rothesay Tramways (Extension) Order 1902 the Rothesay Tramways Company Limited (hereinafter called "the Company") have constructed and are working a system of tramways connecting Rothesay Port Bannatyne and Ettrick Bay and situate partly in the royal burgh and parish of Rothesay and partly in the parish of North Bute in the county of Bute :

And whereas under powers conferred by the said Orders of 1900 and 1902 the Company are working the said system of tramways by electricity and have constructed a generating station at Port Bannatyne and provided the standards apparatus and equipment necessary for so working the tramways :

And whereas the said system of tramways is situate between Rothesay and Port Bannatyne in public roads and between Port Bannatyne and Ettrick Bay for a short distance in the public road between those places and for the remainder in lands adjoining the south side of that road and acquired by the Company under the powers of the said Order of 1902 :

And whereas by the Rothesay Tramways (Amendment) Order 1918 and the Rothesay Tramway (Amendment) Order 1924 the tolls rates fares and charges leviable by the Company in respect of their system of tramways have been increased :

And whereas the public need for road transport between Rothesay and Ettrick Bay along the route of the Company's system of tramways can be met during



part of the year by services of omnibuses and it is expedient to authorise the Company to discontinue services of tramcars during the periods of the year and subject to the conditions in this Order mentioned : A.D. 1930.

And whereas it is also expedient to make provision as in this Order contained for the permanent abandonment of the Company's system of tramways and the substitution therefor by the Company of services of omnibuses :

And whereas it is expedient that the other provisions of this Order be made :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

1.—(1) This Order may be cited as the *Rothsay Tramways and Omnibuses Order 1930.* Short and collective titles.

(2) The *Rothsay Tramways Orders 1880 to 1924* and this Order may be cited together as the *Rothsay Tramways and Omnibuses Orders 1880 to 1930.*

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the Order which date is hereinafter referred to as “the commencement of this Order.” Commencement of Order.

3. In this Order the words and expressions hereinafter mentioned shall unless the context otherwise requires have the meanings hereinafter stated (namely) :— Definitions.

“The Company.” means the *Rothsay Tramways Company Limited*;

“The Order of 1880 ” “ the Order of 1900 ” “ the Order of 1902 ” “ the Order of 1918 ” and “ the Order of 1924 ” respectively mean the recited Orders of those respective years;

“The existing Orders ” means the Order of 1880 the Order of 1900 the Order of 1902 the Order of 1918 and the Order of 1924;

“The tramways ” means the tramways constructed by the Company under the existing Orders and includes the tramroad section;



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- “ Equipment ” means posts standards brackets cables wires works and apparatus forming part of or provided and used in connection with the tramways but does not include the rails and paving setts thereof;
- “ The tramroad section ” means so much of the tramway No. 3 authorised by the Order of 1902 as is situate in lands on the south side of the public road leading from Port Bannatyne to Ettrick Bay namely the portion of that tramway between a point 1 furlong 0·95 chain or thereabouts from its commencement at Port Bannatyne and its termination at Ettrick Bay;
- “ The tramway route ” means in relation to services of tramcars the route of the tramways and in relation to services of omnibuses the route of such of the tramways as were constructed under the powers of the Order of 1880 and the road leading from Port Bannatyne to Ettrick Bay between the tramway terminus at Port Bannatyne and the termination of that road at Ettrick Bay;
- “ The date of abandonment ” means the date prescribed by the Minister for the abandonment of the tramways by any order made under the provisions of section 6 (As to permanent abandonment of tramways) of this Order;
- “ Omnibus ” means any stage carriage moved by animal power or by mechanical power (including in that expression steam electrical and every other motive power not being animal power) obtained from some internal source;
- “ Road authority ” means with reference to any road or bridge with the immediate approaches thereto or any part thereof the authority company or person charged with or liable to contribute to the maintenance of such road or bridge with the immediate approaches thereto or any part thereof;
- “ Licensing authority ” means an authority having jurisdiction to grant licences for an omnibus to ply for hire;
- “ Authorised undertakers ” and “ lighting authority ” have the same respective meanings as in the Electricity (Supply) Act 1919;
- “ The Minister ” means the Minister of Transport;



“ The corporation ” means the provost magistrates and councillors of the royal burgh of Rothesay; A.D. 1930.  
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“ The district committee ” means the Bute District Committee of the county council of the county of Bute;

“ The local authorities ” means the corporation and the district committee;

“ The Bute agreement ” means the agreement between the trustees of the late Marquess of Bute and the Company set out in the schedule to the Order of 1902.

4.—(1) If and so long as the Company during any period between the thirtieth day of September in any year and the first day of June in the following year or any part of any such period provide along the tramway route or any part thereof services of omnibuses which are adequate and satisfactory within the meaning given to that expression by section 12 (Meaning of adequate and satisfactory services) of this Order then (notwithstanding anything in the Tramways Act 1870 or the existing Orders or any other Act or Order or any agreement) the Company may during such period or part of such period when such services of omnibuses are so provided by the Company discontinue the working of the tramways on the tramway route or the part thereof along which such services are so provided (as the case may be) and cease to run any services of tramcars thereon. Temporary suspension of tramway services.

(2) The powers of this section shall only be exercisable by the Company subject to such byelaws as the local and road authority or local and road authorities as the case may be within whose district or districts such omnibuses may be run are now or may hereafter be empowered to make and enforce with reference to omnibuses.

5. Notwithstanding anything in section 21 (Penalty for default of promoters in working tramways but tramways not to be worked on Sundays except with consent of local and road authorities) of the Order of 1880 the Company shall not after the termination of any agreement existing at the commencement of this Order between the Company and the local authorities or either of them or the county council be required to obtain the consent of or be under any liability to make any payment Sunday tramway services.



A.D. 1930. — to either of the local authorities or the county council in respect of any services of tramcars run on Sundays.

As to  
 permanent  
 abandon-  
 ment of  
 tramways.

6.—(1) The Company may at any time after the commencement of this Order make application to the Minister for the abandonment of the tramways and if on any such application the Minister is satisfied that it is just and expedient that an order should be made under the provisions of this section having regard to all circumstances the Minister may by order authorise the abandonment of the tramways and prescribe a date (in this Order referred to as “the date of abandonment”) which shall not be earlier than six weeks from the making of the order on which date the abandonment shall take effect.

(2) Before making an order under this section the Minister shall—

- (a) require the Company to give public notice of the application for the order and as to the manner in which and the time within which representations may be made and to give a similar notice in writing to the corporation and the district committee; and
- (b) consider any representations which may be duly made.

(3) If any order be made by the Minister under this section then as from the date of abandonment and notwithstanding anything in the existing Orders or in any agreement existing at the commencement of this Order and referring directly or indirectly to the Company or the undertaking the Company shall discontinue the working of the tramways and all powers obligations and liabilities of the Company in relation to the tramways and the rails and paving setts thereof and the equipment and the maintenance of the roads and footpaths in which the tramways or the equipment are situate existing under or by virtue of any Act Order lease agreement or other instrument whatsoever shall (except as hereinafter in this Order expressly provided) cease and determine and the provisions of the next succeeding section of this Order shall have effect.

Provisions  
 consequent  
 on abandon-  
 ment of  
 tramways.

7.—(1) Subject to the provisions of subsections (4) (5) and (7) of this section and except as may be otherwise agreed between the Company and the local authorities



or either of them or any road authority under the next succeeding section of this Order the Company— A.D. 1930.  
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(i) shall within six months from the date of abandonment or such longer period as may be agreed between the Company and the road authority concerned take up and remove the tramways and the rails and paving setts thereof and the equipment other than any underground cables wires works and apparatus; and

(ii) may within the said period of six months or such longer period as aforesaid take up and remove any underground cables wires works and apparatus forming part of the equipment.

(2) The Company shall with all convenient speed after any such taking up and removal under subsection (1) of this section fill in the ground and make good the surface of and to the reasonable satisfaction of the road authority restore the portion of the road or footpath disturbed by such taking up and removal to as good a condition as—

(i) if it is a road forming part of the route of any of the tramways authorised by the Order of 1880 or any footpath of any such road the condition in which that road or footpath was in the year eighteen hundred and eighty before those tramways were first constructed; and

(ii) if it is the road between Port Bannatyne and Ettrick Bay or a footpath of that road the condition in which that road or footpath was in the year nineteen hundred and four before tramway No. 3 authorised by the Order of 1902 was constructed;

and clear away all surplus paving metalling or other material or rubbish occasioned by such work and in the meantime cause the place where the road or footpath is opened or broken up to be fenced and watched and properly lighted at night.

(3) If the Company fail to comply with their obligations under paragraph (i) of subsection (1) of this section within the period of six months from the date of abandonment or such longer period as may be agreed with the road authority or fail to comply with their obligations under subsection (2) of this section within the period of



A.D. 1930. — one month after the expiration of the said six months or longer period as aforesaid or after compliance with the said paragraph (i) (whichever is the earlier) the road authority may at any time after such respective periods themselves do the works and things necessary for complying with such obligations and may recover from the Company the cost reasonably incurred by them in so doing.

(4) Notwithstanding anything in the foregoing provisions of this section the following provisions shall have effect :—

- (a) The Company may with the approval of the road authority concerned leave in the road all or any part of the rails and paving setts of the tramways;
- (b) The Company may enter into and carry into effect agreements with any authorised undertakers empowered to lay electric wires or cables in any road or footpath in which any part of the equipment may be laid or placed or with any lighting authority for the sale subject to the approval of the road authority (which approval shall not be unreasonably withheld) of any part of the equipment and on the execution of any such agreement any part of the equipment comprised therein shall vest in the authorised undertakers or the lighting authority (as the case may be) subject nevertheless to the provisions of any Act or Order which would have applied to such part of the equipment if it had been laid or placed in such road or footpath by the authorised undertakers or the lighting authority :

Provided that if at any time before or within one month after the date of abandonment the Corporation as authorised undertakers for the purposes of the Rothsay Electric Lighting Order 1898 shall give notice to the Company that they desire to purchase any part of the equipment laid or placed in any road or footpath in their burgh and if the Company do not desire to retain such equipment for the purposes mentioned in paragraph (c) of this



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subsection the Company shall sell and the corporation shall purchase the equipment to which the notice relates on terms to be agreed between the corporation and the Company or failing agreement determined by a single arbiter to be agreed between the parties or (failing agreement) to be appointed on the application of either party after notice in writing to the other party by the President of the Institution of Electrical Engineers;

- (c) The Company may (if they so desire) retain either permanently or for such period as they think fit any part of the equipment for the purposes of supplying electricity for use in connection with their undertaking or business or to the district committee for public lighting under any agreement existing at the commencement of this Order or to any local authority company or person to whom they may for the time being be entitled to supply electricity or for use for any purpose on any land or in any buildings for the time being belonging or formerly belonging to the Company. Provided that if at any time the Company shall cease to use any part of the equipment so retained they shall forthwith take up and remove the equipment other than any underground cables wires works and apparatus and the provisions of subsections (2) (3) and (6) of this section shall apply to such equipment other than as aforesaid and to the Company with reference thereto with such modifications as may be necessary;
- (d) The Company may appropriate and use for any purposes of their undertaking any rails and paving setts of the tramways taken up and removed by them and sell or otherwise dispose of any rails paving setts and equipment whether or not so taken up and removed.
- (5) (i) If any underground cables wires works and apparatus forming part of the equipment be not taken up and removed by the Company under the provisions of this section then (except as provided by subsection (7) of this section) as from the date of abandonment; or



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(ii) If any rails and paving setts be left in any roadway by agreement with the road authority under paragraph (a) of subsection (4) of this section then as from the date of such agreement; or

(iii) If any part of the overhead equipment be purchased by any authorised undertakers or lighting authority under paragraph (b) of the said subsection (4) then as from the date of such purchase

any and every obligation or liability imposed on the Company by the existing Orders or this Order or any other Act Order lease agreement or instrument whatsoever with respect to the maintenance or the taking up and removal of or otherwise relating to such equipment or rails and paving setts (as the case may be) shall cease and the provisions of the existing Orders and of the Acts incorporated with those Orders shall cease to apply to such equipment or rails and paving setts.

(6) If any difference shall arise between the Company and any road authority under subsection (2) of this section or under subsection (4) (b) of this section as to whether any approval of any road authority has been unreasonably withheld the difference shall on the application of either party thereto be referred to and determined by the Minister whose decision shall be final.

(7) Notwithstanding anything in subsection (5) of this section if any of the equipment be retained by the Company under paragraph (c) of subsection (4) of this section the sections of the existing Orders and of the Tramways Act 1870 hereinafter mentioned shall (subject as hereinafter provided) continue to apply to the equipment so retained (but not to any other equipment) during the period while it is so retained and the Company shall with regard to the equipment so retained by them continue during that period to be entitled to exercise the powers conferred by and to be subject to the obligations and liabilities imposed by those sections. The sections before referred to are—

Section 14 (Works for applying mechanical power) of the Order of 1900 except paragraph (1) thereof and as if the words “the aforesaid purposes” in paragraph (2) of that section



meant the purposes mentioned in paragraph (c) of subsection (4) of this section; A.D. 1930.

Section 16 (As to posts standards and brackets) of the Order of 1900 except proviso (a) to subsection (1) thereof;

Section 30 (Provision as to gas and water companies) of the Tramways Act 1870 so far as the provisions of that section are by section 17 of the Order of 1900 applied to any such equipment as aforesaid;

Sections 23 and 24 of the Order of 1902 so far as those sections extend and apply the provisions of the said sections 14 and 16 of the Order of 1900 to any equipment constructed erected or laid under the powers of the Order of 1902.

8. The Company on the one hand and the local authorities or either of them or any road authority on the other hand may enter into and carry into effect agreements for and with respect to the removal or non-removal of any of the tramways and the rails and paving setts thereof and the equipment and the reinstatement of the road or footpath in which any such tramway rails paving setts or equipment is or are situate and for and with respect to any other of the purposes or provisions of the immediately preceding section of this Order. Agreements with local and road authorities.

9.—(1) Notwithstanding anything in this Order the provisions of section 7 (Provisions consequent on abandonment of tramways) of this Order shall not (except as mentioned in subsection (5) hereof) apply to the tramroad section or to the Company with reference thereto. As to tramroad section.

(2) If any order be made by the Minister under section 6 (As to permanent abandonment of tramways) of this Order authorising the abandonment of the tramways then within three months after the date of abandonment the Company shall take up and remove all rails and sleepers and may take up and remove any equipment belonging to them and situate on the lands forming the site of the tramroad section and may (as and when they think fit) appropriate and use for any purposes of their business and undertaking or sell and dispose of any rails sleepers and equipment so taken up and removed.



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(3) Subject to the provisions of subsection (4) of this section the lands forming the site of the tramroad section may be sold leased or otherwise disposed of by the Company in such manner and at such time or times and on such terms and conditions as the Company may deem expedient but subject to all existing rights of way and other rights and servitudes.

(4) Before the Company dispose of the lands forming the site of the tramroad section the Company shall first offer to sell the same to the present Marquis of Bute or such other person as may at the time be entitled to the lands from which the said land was originally severed. Such offer shall be made in the manner (so far as applicable) prescribed by the Lands Clauses Consolidation (Scotland) Act 1845 with respect to the sale of superfluous land and all the provisions of sections 122 123 and 124 of that Act shall apply to an offer to sell under this subsection and shall be deemed to be incorporated in this subsection.

(5) The provisions of paragraphs (b) and (c) of subsection (4) and subsection (7) of section 7 (Provisions consequent on abandonment of tramways) of this Order shall apply to the equipment situate on the lands forming the site of the tramroad section in like manner as those provisions apply to the rails paving setts and equipment referred to in the said section 7 and as though the said provisions were re-enacted in this section with any necessary modifications. Provided that if any right of pre-emption be exercised under the provisions of subsection (4) of this section the Company or any purchaser of any of the equipment placed upon the lands forming the site of the tramroad section shall be entitled to retain such equipment on the said land only to such extent and upon such terms and conditions as may be agreed with the person or persons exercising such right of pre-emption or in default of agreement settled by arbitration in manner provided by paragraph (b) of subsection (4) of section 7 (Provisions consequent on abandonment of tramways) of this Order.

Obligatory  
services.

10.—(1) On the commencement of this Order the Company shall commence to provide and shall thereafter until the date of abandonment (subject to the provisions of this Order) continue to provide on the tramway route



services of tramcars and omnibuses or services of tramcars alone or during any period when the working of the tramways on the tramway route is discontinued under section 4 (Temporary suspension of tramway services) of this Order services of omnibuses alone which shall be adequate and satisfactory within the meaning given to that expression by section 12 (Meaning of adequate and satisfactory services) of this Order Provided that if the Company shall at any time satisfy the Minister that during a period of twelve months prior to the date of any application to the Minister under the provisions of this subsection the whole of the services then being provided by them in pursuance of this section has not yielded a reasonable profit (after paying all proper expenses of and in connection with the working of those services and all other costs charges and expenses properly chargeable to revenue in connection with those services and making proper allowance for depreciation) the Minister may authorise such variation of those services or any of them or the limitation thereof to a part only of the tramway route either permanently or temporarily or the discontinuance of such one or more of those services as he may think fit in order that the whole of the services to be provided by the Company under this section shall yield a reasonable profit and if the Company shall at any time satisfy the Minister that no adequate and satisfactory services can be provided in accordance with the provisions of this section so as to yield a reasonable profit the Minister may declare that the Company's obligations and liabilities under this section shall cease and determine.

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(2) The licensing authority for the areas in which the tramway route is situate shall (subject to any right to approve or disapprove the fitness of vehicles for which a licence to ply for hire is desired) grant to the Company such number of licences for omnibuses to ply for hire as the Company may from time to time reasonably require for the purpose of complying with their obligations under this section.

If any dispute shall arise between the Company and any licensing authority as to what number of licences are reasonably required by the Company for the said purpose the dispute shall be referred to the Minister whose decision shall be final.



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(3) If the Company fail to run such adequate and satisfactory services as they are for the time being required to run under this section they shall be liable to a penalty not exceeding ten pounds for every day on which the failure occurs.

Restricting  
running of  
omnibuses  
in compe-  
tition.

11.—(1) If and so long as the Company provide on the tramway route or any particular part thereof such service or services of tramcars or of omnibuses or of tramcars and omnibuses as they are for the time being required to provide under the provisions of this Order it shall not be lawful (except as hereinafter in this section provided) for any other company or for any local authority body or person to run omnibuses or other passenger road transport services along the tramway route or part of the tramway route where such service or services is or are provided by the Company or along any other route in competition with such service or services of the Company.

(2) The licensing authority of the area in which any part of the tramway route is situate may and shall when licensing an omnibus to ply for hire in the Isle of Bute have regard to the provisions of subsection (1) of this section and shall only grant a licence for such omnibus subject to conditions as to the routes along which such omnibus shall or shall not ply for hire and such other conditions as may be necessary or desirable to protect the services (whether of tramcars or omnibuses) for the time being provided by the Company in compliance with their obligations under this Order. Provided that if any question arise between the Company and any company authority body or person as to whether any route in respect of which a licence may be applied for by or may be granted to any such company authority body or person is competitive or as to whether any such conditions as aforesaid should be attached to any licence or as to the nature of any conditions to be so attached such question shall be determined as provided in subsection (3) of this section. Provided further that the right of the applicant for the licence of appeal to the Minister from the decision of the licensing authority under section 14 (3) of the Roads Act 1920 shall not be affected but the Minister in making any order under that section shall have regard to the provisions of this section.

(3) Any question at any time arising as to whether or not the Company are providing such service or services



of tramcars or of omnibuses or of tramcars and omnibuses as they are for the time being required to provide under the provisions of this Order or on any of the matters mentioned in subsection (2) of this section shall be determined by the Minister on the application of any interested party and the Minister shall have power to make such order thereon as he thinks fit. Any order made by the Minister under this section shall be final and binding on the parties affected thereby and shall be enforceable at the instance of the Minister or of the Company or of the licensing authority or of the applicant for a licence (as the case may be) by summary application to the sheriff. A.D. 1930.

(4) If any failure by the Company to provide along the tramway route or any part thereof such service or services as aforesaid is due to the refusal by any licensing authority to grant any licences for which the Company have applied for omnibuses to ply for hire or to any strike or unforeseen accident or other circumstances beyond the control of the Company such failure shall not render the Company liable to any penalty under subsection (3) of the immediately preceding section of this Order nor entitle any other Company or any local authority body or person to run omnibuses along the route or part of a route where the failure has occurred or along any other route in competition therewith or deprive the Company of any benefit or protection conferred on them by the foregoing provisions of this section.

(5) Nothing in this section shall be deemed—

- (a) to restrict the running of any service of omnibuses by any such company authority body or person along the tramway route or any other route in competition therewith if (i) such service is not used so as to compete with any such service of the Company as is mentioned in subsection (1) of this section and (ii) no passenger conveyed by such omnibus is both taken up and set down on any one journey on the tramway route or any route in competition therewith;
- (b) to prevent the grant or renewal by a licensing authority of any licence to ply for hire with an omnibus on the condition that no passenger conveyed by the omnibus to which



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the licence relates shall be both taken up and set down on any one journey on the tramway route or any route in competition therewith; or

(c) to prevent the renewal (in the name of the licensee or his personal representative) by a licensing authority of the licences specified in the Schedule to this Order or to prevent the grant of a licence to ply for hire with an omnibus substituted by the licensee for any omnibus to which any of the licences specified in that Schedule applies or to restrict the running of any such last-mentioned omnibus or substituted omnibus along the tramway route or any part thereof.

(6) If the holder of any licence specified in the Schedule to this Order shall die and his personal representative shall desire to sell the omnibus to which the licence applies the Company shall purchase the omnibus at such price as may be agreed between such personal representative and the Company or failing agreement determined by a single arbiter who shall (unless otherwise agreed between the parties) be appointed by the Minister.

(7) The provisions of this section shall cease to have effect on the date of abandonment or any declaration of the Minister under section 10 (Obligatory services) of this Order that the Company's obligations and liabilities under that section shall cease and determine.

(8) Any local authority company body or person who runs any omnibus or other vehicle in contravention of the provisions of this section shall for each such offence be liable to a penalty not exceeding ten pounds.

Meaning of  
adequate  
and satis-  
factory  
services.

12.—(1) For the purposes of the foregoing provisions of this Order the Company shall be deemed to be providing adequate and satisfactory services of tramcars or of omnibuses or of tramcars and omnibuses if they are providing the services specified in subsection (2) hereof or such other services as may from time to time be agreed with the local authorities. Provided that if other services are so agreed with the local authorities and the agreed services are of less frequency than the services



specified in subsection (2) hereof the agreed services shall not be deemed to be adequate and satisfactory services for the purposes aforesaid unless and until approved by the Minister. A.D. 1930.  
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(2) The specified services referred to in subsection (1) hereof are the following services :—

(a) During the months of June to September inclusive—

(i) From Rothsay (Guildford Square) to Port Bannatyne—

On week days—A ten-minutes service from 7.30 a.m. to 10.30 p.m.;

On Sundays—A ten-minutes service from 9.45 a.m. to 10.15 p.m.;

(ii) From Port Bannatyne to Rothsay (Guildford Square)—

On week days—A ten-minutes service from 7.15 a.m. to 10.15 p.m.;

On Sundays—A ten-minutes service from 9.30 a.m. to 10.0 p.m.;

(iii) Between Port Bannatyne and Ettrick Bay—

On week days—A service of twenty-six journeys in both directions;

On Sundays—A service of twenty journeys in both directions.

(b) During the months of October to May inclusive—

(i) From Rothsay (Guildford Square) to Port Bannatyne—

On week days—A half-hourly service from 7.30 a.m. to 10.30 p.m.;

On Sundays—A half-hourly service from 9.30 a.m. to 10.0 p.m.;

(ii) From Port Bannatyne to Rothsay (Guildford Square)—

On week days—A half-hourly service from 7.15 a.m. to 10.15 p.m.;

On Sundays—A half-hourly service from 9.15 a.m. to 9.45 p.m.;



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(iii) Between Port Bannatyne and Ettrick Bay—

On every day—A service of three journeys in both directions; and

(c) During any month such supplementary services on the tramway route or any portion thereof as may from time to time be necessary for meeting the public needs for road transport services thereon.

(3) A list of the services which the Company are for the time being required to provide under this Order shall be exhibited by the Company by placards in conspicuous places on or near either terminus of the tramway route at Rothsay (Guildford Square) and Ettrick Bay respectively and at the Company's depôt in Port Bannatyne. If the Company fail to exhibit such placards they shall be liable to a penalty not exceeding five pounds for every day on which the failure occurs.

Provisions  
as to  
Company's  
omnibuses.

13.—(1) Every omnibus used for the purpose of a service provided under this Order and moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphic line (as defined by the Telegraph Act 1878) of the Postmaster-General.

(2) The Company shall perform in respect of the omnibuses used for the purpose aforesaid such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

(3) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses used for the purpose aforesaid as if they were carriages used on tramways.

(4) The Company may make byelaws for regulating the travelling in or upon the omnibuses used for the purpose aforesaid and for the prevention of nuisances in or upon such omnibuses or in or against any premises held by the Company in connection therewith.

Fares for  
passengers.

14.—(1) The Company may demand and take for every passenger conveyed on the omnibuses used for the purpose of a service provided under this Order in-



cluding every expense incidental to such conveyance a fare not exceeding one penny half-penny per mile and in computing the said fare any fraction of a mile shall be deemed a mile Provided that the Company may appoint stages each of not less than half a mile in length and may demand and take for every passenger travelling on the omnibuses including every expense incidental to the conveyance of such passenger any fare not exceeding one penny half-penny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed to be a stage Provided also that the Company may charge for the conveyance of any such passenger a minimum fare of twopence.

A.D. 1930.

(2) Every passenger conveyed on the omnibuses used for the purpose aforesaid may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat required for a passenger nor be of a form or description to annoy or inconvenience other passengers.

15. Section 5 (Fares charged to persons resident in Bute &c.) of the Order of 1924 shall apply to all services of omnibuses provided by the Company in pursuance of section 10 (Obligatory services) of this Order as if the fares referred to in that section were fares for the conveyance of passengers by omnibuses used for those services Provided that the said fares shall be subject to revision on the application of the Company under section 17 (Periodical revision of fares and charges) of this Order.

Omnibus  
fares to  
persons  
resident in  
Bute &c.

16. The provisions of section 24 (Cheap fares for labouring classes) of the Order of 1900 as amended by section 2 (Alteration of tolls) of the Order of 1924 shall apply to any service of omnibuses provided during the months of October to May inclusive for the purposes of section 4 (Temporary suspension of tramway services) of this Order to the same extent as those provisions apply to the tramway services in respect of which such service of omnibuses is substituted.

Cheap fares  
for labour-  
ing classes.

17.—(1) If at any time after two years from the date on which the Company have commenced to provide any service of omnibuses in compliance with the provisions of section 10 (Obligatory services) of this Order

Periodical  
revision of  
fares and  
charges.



A.D. 1930. — or after two years from the date of any order made in pursuance of this section in respect of any such service it is represented in writing to the Minister by the local authority of the area in which the service is wholly or partly provided or by twenty inhabitant ratepayers of that area or by the Company that all or any of the fares prescribed by the three preceding sections of this Order should be revised the Minister may by order in writing alter modify reduce or increase all or any of the fares to be taken in respect of the services so provided as aforesaid and thenceforth such order shall be observed until the same is revoked or modified by an order of the Minister made in pursuance of this section The Minister shall before making any such order give all interested parties including the Company and the local authorities an opportunity of being heard.

(2) In considering any representation under this section the Minister shall have regard to the capital of the Company and the provision of a reasonable return thereon subject to such adjustment as the Minister may think fit in respect of any capital expended upon works which by reason of the exercise of the powers of this Order have been superseded.

List of  
fares &c.  
to be  
exhibited.

18. A list of the fares by this Order authorised to be demanded and taken in respect of traffic on the omnibuses used for a service provided by the Company under this Order shall be exhibited in a conspicuous place inside each of those omnibuses and such fares shall be paid to such persons and in such manner as the Company may by notice annexed to such list appoint.

As to  
fares on  
Sundays or  
holidays.

19. It shall not be lawful for the Company in respect of any omnibus used for a service provided under this Order to take or demand on Sunday or any public holiday any higher fares than those levied by them on ordinary week days.

Through  
omnibuses.

20. The Company may run through omnibuses along the tramway route or any particular part thereof and those omnibuses shall be distinguished from other omnibuses in such manner as may be directed by the Company and they may demand and take for every passenger carried by those through omnibuses a fare not exceeding the maximum fare for the time being authorised or chargeable for and in respect of the whole



of the tramway route or the whole of the part thereof traversed by any such through omnibuses Provided that during the running of such through omnibuses the Company shall maintain a reasonably sufficient ordinary service of omnibuses. A.D. 1930. —

21.—(1) Notwithstanding anything in this Order to the contrary the Company may on any occasion run and reserve omnibuses along the tramway route or any particular part thereof for any special purpose which the Company may consider necessary or desirable Provided that such special omnibuses shall be distinguished from other omnibuses in such manner as the Company may direct and that during the running of such special omnibuses the Company shall maintain a reasonably sufficient ordinary service of omnibuses. Power to reserve omnibuses for special purposes.

(2) The Company may make byelaws for prohibiting the use of any such special omnibuses by any persons other than those for whose conveyance they are reserved.

(3) The restrictions contained in this Order as to fares shall not extend to any omnibus run for special purposes and in respect thereof the Company may demand and take such fares or charges as they shall think fit.

22. The Company may appoint stations and places from which the omnibuses run on the tramway route shall start or at which they may be required to stop for the purpose of taking up or setting down passengers and may fix the time during which those omnibuses shall be allowed to remain at any such place but such appointment of stations and places and fixing of time shall be subject to the approval of the local authority of the area in which the station or place is appointed which approval shall not be unreasonably withheld and any question whether such approval is unreasonably withheld shall be determined by the Minister. Company may appoint stopping and starting places.

23. All byelaws made by the Company under the provisions of this Order shall be made subject to and in accordance with the provisions of the Tramways Act 1870 with respect to the making of byelaws. Byelaws.

24. The Company may provide cloakrooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any depôt or building used by them Cloak-rooms &c.



A.D. 1930. — in connection with their omnibus services and at suitable places on any of their omnibus routes and the Company may make charges for the use of such cloakrooms rooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein but shall not use for the purpose any part of a public road or street without the consent of the road authority.

Power to  
sell &c.  
generating  
station.

25. The Company may at any time sell lease or otherwise dispose of to any authorised undertakers for such price or other consideration or at such rent and for such period and otherwise on and subject to such terms and conditions as they may think fit the generating station provided by them under the Order of 1902 and the site thereof and all or any of the buildings plant works apparatus and conveniences forming part thereof or connected therewith (but excepting any apparatus belonging to the county council of the county of Bute or the district committee) or the Company may if they think fit and notwithstanding the abandonment of the tramways in pursuance of any order made by the Minister under this Order retain and hold the said generating station and the site thereof and the said buildings plant works apparatus and conveniences and use the same for the purposes of supplying electricity for use in connection with their undertaking or business or to the district committee for public lighting or to any local authority company or person to whom they may for the time being be entitled to supply electricity or for use for any purpose on any land or in any building for the time being belonging or formerly belonging to the Company.

For protec-  
tion of  
Postmaster-  
General.

26. All the provisions for the protection of the Postmaster-General and his telegraphic lines contained in the Electricity (Supply) Acts 1882 to 1928 and in the schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to the retention holding or use by the Company under the provisions of this Order of any generating station equipment plant works and apparatus and to any works constructed for the purposes mentioned in the last preceding section of this Order.

User of  
buildings at  
Ettrick Bay.

27. Notwithstanding anything in the Order of 1902 or in the Bute agreement or any other agreement between the Company and the present Marquis of Bute or his predecessors in title or the trustees of the late Marquess



or his predecessors or any other person or in any conveyance of any lands acquired by the Company from the said present Marquis or his predecessors or such trustees or in any other Order agreement deed or other instrument whatsoever it shall be lawful for the Company or their successors in title to use any of the lands acquired by them under the powers of the Order of 1902 or in pursuance of the Bute agreement or any buildings erected or to be erected by the Company on any such lands for the purposes of athletic or other games or of public entertainment or instruction or of public or other meetings or any other similar purposes.

A.D. 1930.  
 —

28. In addition and without prejudice to any other powers conferred on the Company by the existing Orders or this Order to sell lease exchange dispose of retain hold use or otherwise deal with any lands belonging to them the Company after the date of abandonment may (notwithstanding anything in the existing Orders or this Order or any enactment incorporated with any of those Orders) retain hold and use for such time and for such purpose as they may think fit or sell lease exchange or otherwise dispose of in such manner and for such consideration as they may think fit any lands or any interest in lands acquired or held by them under or for the purposes of the existing Orders or this Order and may sell exchange and dispose of any interest in lands reserved on the sale lease exchange or disposition of such lands or interest as aforesaid and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or disposition. Provided that nothing in this section shall (except as expressly enacted by this Order) affect or authorise anything to the prejudice of any covenant restriction or trust relating to any such lands and nothing in this section shall authorise the Company to create or permit a nuisance on any such land. Provided also that before the Company dispose of any of the lands referred to in the immediately preceding section of this Order they shall first offer to sell the same to the present Marquis of Bute or his successors in title for the time being in the adjoining lands and the provisions of subsection (4) of section 9 (As to tramroad section) of this Order shall so far as applicable apply thereto.

Power to  
 sell &c.  
 lands.



A.D. 1930.  
 —  
 Application  
 of section 44  
 of Tram-  
 ways  
 Act 1870.

29. Notwithstanding anything in this Order or the abandonment of the tramways in pursuance of any order made by the Minister under section 6 (As to permanent abandonment of tramways) of this Order section 44 of the Tramways Act 1870 shall continue to apply to the Company and shall have effect as if—

(a) the words “their undertaking” in that section meant the whole of the undertaking of the Company under the existing Orders and this Order and of their business and included all lands garages sheds buildings omnibuses vehicles plant materials apparatus goods chattels stocks stores powers rights privileges and authorities and all other property whatsoever and where-soever of or belonging to or in any way vested in or attaching to the Company at the date of purchase Provided that the undertaking of the Company for the purpose of any sale or purchase under the provisions of the said section 44 as applied to the Company by this section shall not include cash in hand or at the bank or securities for money or the depreciation fund or reserve fund or book debts due on revenue account belonging to or vested in the Company at the date of purchase or liabilities or debts accrued due from the Company at the date of purchase; and

(b) the words “such tramway was constructed” in that section meant such undertaking was executed or carried on.

Repeal of  
 existing  
 purchase  
 rights.

30. All rights and powers conferred on or vested in the local authorities or either of them by the existing Orders or the Tramways Act 1870 of purchasing the tramways or the undertaking of the Company or any part thereof otherwise than under section 44 of the Tramways Act 1870 as applied to the Company by the immediately preceding section of this Order are hereby repealed.

Inquiries by  
 Minister of  
 Transport.

31. In respect of the exercise of any powers or duties conferred or imposed on the Minister under this Order the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister



were referred to in the said Act instead of the Board of Trade and as if in the said section 4 the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the Secretaries of the Board."

A.D. 1930.  
—

32. Proceedings for the recovery of any demand made under the authority of this Order or any other Order or any Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any sheriff court having otherwise jurisdiction in the matter.

Recovery of demands.

33. Save as otherwise by this Order expressly provided all offences against this Order and all penalties forfeitures costs and expenses imposed or recoverable under this Order or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of penalties &c.

34. The Company shall in every year within three months after the close of their financial year or such longer period as the Minister may allow send to the Minister a copy of the annual accounts of their undertaking.

Accounts.

35. The Company shall keep the accounts in respect of their omnibus undertaking separate from their other accounts distinguishing therein capital from revenue.

Accounts of omnibus undertaking.

36. Nothing in this Order shall prevent the Company from running omnibuses elsewhere than along the tramway route or otherwise than as part of any service which they are required to provide in pursuance of this Order or from entering into any agreement or doing any other act or thing or carrying on any business for the time being authorised by their memorandum of association.

Order not to limit Company's powers under memorandum of association.

37.—(1) The Company shall deliver to the Registrar of Joint Stock Companies in Scotland a printed copy of the Act confirming this Order and he shall retain and register the same If such copy is not delivered within three months from the commencement of this Order the Company shall incur a penalty not exceeding two pounds

Copy of Act to be registered.



A.D. 1930. — for every day after the expiration of the said three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty.

(2) Every penalty under this section shall be recoverable summarily.

(3) There shall be paid to the said registrar by the Company on such copy being registered the fee of five shillings.

Saving as  
to general  
Omnibus  
Acts.

38. Nothing in this Order shall exempt the Company or their omnibuses from the provisions of any public general Act relating to omnibuses passed after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum fares or charges authorised by this Order in relation to omnibuses used for the purpose of any service provided by the Company under this Order.

Costs of  
Order.

39. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company.

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The SCHEDULE referred to in the foregoing Order.

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| <i>Name of licensee.</i>      | <i>No. of licences.</i> |
|-------------------------------|-------------------------|
| Martin Brothers - - - - -     | 2                       |
| J. & A. Martin Ltd. - - - - - | 2                       |
| P. McKellar & Son - - - - -   | 2                       |
| J. S. Bell - - - - -          | 1                       |
| Robert Jardine - - - - -      | 1                       |
| James Wilson - - - - -        | 1                       |

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